

HOUSE No. 2328**The Commonwealth of Massachusetts**

PRESENTED BY:

David M. Rogers and Samantha Montaña*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act enabling cities and towns to stabilize rents and protect tenants.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>1/16/2025</i>
<i>Samantha Montaña</i>	<i>15th Suffolk</i>	<i>1/16/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>1/16/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>1/16/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/13/2025</i>
<i>Shirley B. Arriaga</i>	<i>8th Hampden</i>	<i>5/8/2025</i>
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>1/28/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/4/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>4/4/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>2/14/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>5/29/2025</i>
<i>Daniel M. Donahue</i>	<i>16th Worcester</i>	<i>3/19/2025</i>
<i>Michelle M. DuBois</i>	<i>10th Plymouth</i>	<i>4/11/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>1/27/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>11/16/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>3/24/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/23/2025</i>
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>3/10/2025</i>

<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>3/5/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/24/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>2/21/2025</i>
<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>4/9/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>3/18/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>3/4/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>2/5/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>2/10/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>1/23/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>3/5/2025</i>
<i>Frank A. Moran</i>	<i>17th Essex</i>	<i>2/25/2025</i>
<i>James J. O'Day</i>	<i>14th Worcester</i>	<i>3/17/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/21/2025</i>
<i>Bridget Plouffe</i>	<i>9th Plymouth</i>	<i>5/1/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>3/22/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>2/3/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>4/7/2026</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/23/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>1/27/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/24/2025</i>
<i>Joshua Tarsky</i>	<i>13th Norfolk</i>	<i>10/9/2025</i>
<i>Chynah Tyler</i>	<i>7th Suffolk</i>	<i>4/7/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>3/12/2025</i>
<i>Erika Uytterhoeven</i>	<i>27th Middlesex</i>	<i>1/29/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>4/4/2025</i>
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>1/24/2025</i>
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>3/5/2025</i>
<i>Hannah Bowen</i>	<i>6th Essex</i>	<i>7/21/2025</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>9/11/2025</i>

HOUSE No. 2328

By Representatives Rogers of Cambridge and Montañó of Boston, a petition (accompanied by bill, House, No. 2328) of David M. Rogers, Samantha Montañó and others relative to enabling cities and towns to stabilize rents and protect tenants. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enabling cities and towns to stabilize rents and protect tenants.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 40P of the General Laws, as appearing in the 2022 Official Edition,
2 is repealed.

3 SECTION 2. The General Laws are hereby amended by inserting after chapter 49A the
4 following chapter:-

5 CHAPTER 49B

6 LIMITATION OF ANNUAL RENT INCREASES AND NO FAULT EVICTIONS

7 Section 1. A city or town may accept this chapter in its entirety in the manner provided in
8 section 4 of chapter 4 of the General Laws. The acceptance of this local option by a municipality
9 shall take effect no later than 180 days after adoption. A municipality that accepts this section
10 shall adopt an ordinance or bylaw which effectuates the provisions of this chapter no later than
11 180 days after acceptance.

Section 2. A city or town accepting this chapter may, by local charter provision, ordinance, by-law, majority vote of its governing body or through a local binding ballot measure impose a limit on the size of annual rent increases and require that evictions be based on defined just cause reasons, for certain dwelling units within the municipality.

Section 3. Exemptions. (a) For the purposes of this chapter, covered dwelling units shall not include:

(i) Dwelling units in owner-occupied buildings with four or fewer units.

(ii) Dwelling units whose rent is subject to regulation by a public authority. Occupancy by a tenant with a mobile housing voucher does not exempt an otherwise covered dwelling unit.

(iii) College or university dormitories where group sleeping accommodations are provided in one room, or in a series of closely associated rooms.

(iv) Facilities for the residential care of the elderly.

(v) Dwelling units for which the first residential certificate of occupancy was issued on or after January 1, 2021 shall be exempt for a period of 5 years from the date at which such certificate of occupancy was issued.

(b) Where dwelling units are exempt, a notice of exemption must be provided with the lease for all tenancies. If there is no written lease for such dwelling units, the tenants-at-will must be provided with a written notice of exemption prior to the acceptance of the initial rent payment.

Section 4. (a) The limit on any annual rent increase for a covered dwelling unit as defined in Section 3(a) shall not exceed the annual change in the Consumer Price Index for the applicable area or 5 per cent, whichever is lower.

(b) For purposes of this chapter, the rent amount in place 12 months prior to the date of adoption shall serve as the base rent upon which any annual rent increase shall be applied. If the dwelling unit is currently vacant, the last rent amount charged shall serve as the base rent. If there was no previous rent amount, or if no rent has been charged for at least the previous five years, for a dwelling unit not exempted under Section 3(a) the rent amount the owner first charges shall serve as the base rent.

Section 5. (a) Cities and towns adopting this chapter shall require that any landlord have just cause for initiating eviction or not renewing a lease; just cause is defined as follows:

(i) Nonpayment of rent

(ii) Refusal to accept a rent increase permitted under this chapter

(iii) Owner seeks to remove the unit from the rental market to convert to cooperative or condominium, provided that owner demonstrate compliance with G.L. ch. 183A, Chapter 527 of the Acts of 1983, or locally-enacted ordinance governing conversions to cooperative or condominiums

(iv) Owner seeks to demolish or convert to non-residential use, or to occupy the unit as the owner's principal residence

(v) Tenant commits a substantial violation of a material lease term or material term of the tenancy

(vi) Tenant engages in criminal activity or behavior that threatens the health and safety of other residents, or persons lawfully on the premises

(vii) Tenant creates a public nuisance in the unit

(viii) Tenant causes substantial damage to the unit

Section 6. Cities and towns adopting this chapter shall provide annual reports to the executive office of housing and livable communities which shall include but not be limited to: the text of the ordinance or bylaw adopting this chapter; any studies undertaken in informing adoption of the ordinance or bylaw; the number of units affected by the ordinance or bylaw; and any other relevant data as determined by the executive office of housing and livable communities.

Section 7. (a) Any violation of this Chapter shall be deemed an unfair and deceptive act under chapter 93A of the General Laws. Any person claiming a violation of this section may pursue remedies under section 9 of chapter 93A. The attorney general is hereby authorized to bring an action under section 4 of chapter 93A to enforce this provision and to obtain restitution, civil penalties, injunctive relief, and any other relief awarded pursuant to said chapter 93A; (b) If a landlord is found to have violated section (4) subsections (a) or (b), the tenant or former tenant, upon proof of the same, shall be awarded actual damages or three times the rent amount, whichever is greater, and attorneys' fees; (c) If a landlord initiates summary process proceedings or otherwise requests that a tenant vacate for a reason not enumerated in section (5), the tenant shall recover possession and shall be awarded damages in the amount of three times the rent amount, in addition to any actual damages incurred by the tenant, and attorneys' fees.

73 Section 8. Nothing in this section shall be construed to interfere with any existing rights
74 or protections afforded to tenants under current state or federal law.